

Bhubaneswar Municipal Corporation User Charges Regulations, 2006

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Rule BHUBANESWAR-MUNICIPAL-CORPORATION-USER-CHARGES-REGULATIONS-2006 of 2006

Published on 3 August 2006

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Bhubaneswar Municipal Corporation User Charges Regulations, 2006

Published vide Notification No. O.G.E. No. 1092 dated 3.8.2006

In exercise of the powers conferred by Section 657 read with Section 193 and Section 659 of the Orissa Municipal Corporation Act, 2003 (Orissa Act 11 of 2003) and having been approved and confirmed by Government, the Corporation do hereby make the following regulations, namely :-

1.

Short title and commencement.

(1)

These regulations may be called the Bhubaneswar Municipal Corporation User Charges Regulations, 2006.

(2)

They shall come into force on the date of their publication in the official gazette of the State.

2.

Definition.

(1)

In these regulations, unless the context otherwise requires, -

(a)

"Act" means the Orissa Municipal Corporation Act, 2003;

(b)

"Corporation" means the Bhubaneswar Municipal Corporation constituted under the provision of the Act.

(c)

"Schedule" means Schedule appended to these regulations.

(d)

"Section" means a Section of the Act.

(2)

Words and expressions used in these regulations but not expressly defined therein shall have the meaning as respectively assigned to them in the Act.

3.

Powers of the Commissioner.

- No person, owner/occupier of any premises shall connect his home drain with the Corporation drain without the written permission of the Commissioner.

4.

Application for connection.

(1)

An application in writing of such intention shall be submitted at the Corporation Office in duplicate in the Form appended to these regulations.

(2)

Such application bear the full name and address of the applicant and shall state the Street and assessment number of the Holding upon which such work is intended to be executed and all necessary particulars required in such Form.

5.

Deposit of Plans.

- The application referred to in Regulation 4, shall be submitted along with the plans and Sections (in Triplicate) clearly and indelibly made on a durable material and shall be prepared by an Architect, signed by a licensed plumber and by the applicant showing the following-

(a)

Every floor of any building to which pipes or drains are to be connected;

(b)

The position, forms, levels and arrangement of various parts of such building including the roof thereof;

(c)

The depth of the proposed drain with relation to the ground level;

(d)

The details, the nature of all sanitary connections including the manner of disposal of drain water and its discharge to the Street water drainage; and

(e)

the disposal of bath room and kitchen sullage and connections to the waste water and nature of connections of such pipe/drain.

6.

Commencement of Work.

- After the plans have been sanctioned by the Commissioner, a copy of such plan shall be returned to the applicant and the work may then be proceeded with.

7.

Notice of completion of Work.

- Every person who constructs/ alters any drain or other drainage work shall inform the Commissioner in writing

specifying the date and time of completion of such drains for final inspection by officers of the Corporation.

8.

Connection with Corporation drain.

- Connection shall be allowed by any officer of the Corporation duly authorized on behalf of the Commissioner, and before the connection is made, a fee as shown against item 1 of the Schedule shall be paid by the applicant towards User Charges.

9.

Parking of different types of Vehicles.

- The Corporation shall from time to time notify and specify different places of the City areas for parking of all kinds of vehicles.

10.

Fees for keeping Vehicles.

- Parking fees for all kinds of vehicles for different places shall be collected at the rates given against item 2 of the Schedules.

11.

Stacking of materials on Public Streets.

- No person shall be allowed to stack any building materials or debris on public streets for construction, alteration, repair or demolition work of any type for more than 24 hours.

12.

User Fees at the rate mentioned against item 3 of the Schedule shall be charged for stacking of such materials on Public Street beyond the stipulated period up to seven days. For further period, if the holding owner/occupier does not remove the materials beyond the stipulated period, a surcharge on such fees @ 50% shall be charged on premises used for non-residential purpose (Commercial).

13.

User Charges on Slum Areas.

- The rate of user charges for slum dwellers in lieu of the services rendered by the B.M.C. to a particular area shall be collected as per rates given in the Schedules.

14.

The user fees for Hotels, Restaurants, Nursing Homes and Apartments shall be collected at the rates mentioned in item 5 of the Schedule for special cleaning.

15.

Penalty.

- Whoever contravenes any of the provisions of these regulations shall be punished with fine which may extend up to Rs. 200 and in case of continuing contravention, with an additional fine, which may extend to Rs. 30 per day.

Bhubaneswar Municipal Corporation

Form

Application for drainage of premises

(See Regulation 4)

To

The Municipal Commissioner,

Bhubaneswar Municipal Corporation.

Sir,

I/We, the undersigned hereby apply for permission to connect the drainage of my/our premises with the main drain of Corporation at(place).

The sanitary arrangement and drains of the said premises are shown in the accompanying plans and sections in triplicate and are described in detail and are open to inspection by the officers of the Corporation.

I/We undertake to carry out the work in accordance with the provisions of the Bhubaneswar Municipal Corporation Regulation and to pay the Corporation the cost of the connection as per rates approved by the Corporation. My/our house tax assessment No. isSuch tax has been deposited vide M.R. No..... dated

Yours faithfully,

Date

Signature of applicant

(Full name & address)

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